

Board Counter of June 10, 2019

MEMORANDUM OF UNDERSTANDING

between the

**BRECKSVILLE-BROADVIEW HEIGHTS
BOARD OF EDUCATION**

and the

**BRECKSVILLE-BROADVIEW HEIGHTS
EDUCATION ASSOCIATION**

CUYAHOGA COUNTY

Effective July 1, 2016 through June 30, 2021

[SEPARATE MOU]

SECTION 43 - CLASSROOM PACKING & MOVING PROVISIONS

- A. For the conclusion of the 2018-2019 school year only, any teacher who needs to relocate and/or unpack their classroom due to the unanticipated closing of the Central School building shall be entitled to the following accommodations based upon grade level.
1. Each teacher assigned to Central School during the 2018-2019 shall be given access to two (2) days of sub coverage to work on packing up their classroom. These days shall be scheduled in coordination with teacher and their principal.
 2. With prior approval of their building principal, Central School teachers can dedicate PLC time to sorting, culling and packing classroom materials for shipment to the Middle School, an Elementary School. ~~or to be stored long-term until the new elementary school construction project is finished.~~
 3. Any Central School teacher who volunteers to unpack and set up their classrooms prior to the first teacher workday of the 2019-2020 school year shall receive one (1) additional personal day as compensation for their efforts. In order to receive this one (1) additional personal day the teacher must spend at least six (6) hours working on their new classroom. It shall be the responsibility of the teacher to coordinate with their building Principal to select the day(s) when the six (6) hours shall be worked, which must occur within the two (2) weeks immediately prior to the start of the school year.
 4. Any K-8 teacher or Middle School teacher who is involuntarily displaced as a result of the closing of Central School (i.e. is required to move their classroom by the District) and whom wishes to unpack and set up their new classrooms prior to the first teacher workday of the 2019-2020 school year, shall receive one (1) additional personal day as compensation for their efforts. In order to receive this one (1) additional personal day the teacher must spend at least six (6) hours working on their new classroom. It shall be the responsibility of the teacher to coordinate with their building Principal to select the day(s) when the six (6) hours shall be worked, which must occur within the two (2) weeks immediately prior to the start of the school year.

SECTION 43 – RETIRE/REHIRE RETIREMENT INCENTIVE

- A. For the 2018-2019 and 2019-2020 school years only, any teacher who is eligible to retire under STRS guidelines shall be eligible to participate in the following retire/rehire retirement incentive:
1. The teacher must, no later than June 15, 2019 or June 15, 2020, serve written notice to the Superintendent and Treasurer that the teacher has retired from their current position in the District.
 2. Any teacher who serves this written notice shall continue to receive all of their remaining pay and benefits through the last pay period of the month of August in the school year in which the teacher retires, as well as all accrued healthcare and other fringe benefits through the month of August of the year in which they retire.
 3. Upon receipt of the teacher's retirement letter, the Board shall immediately rehire the teacher under a limited contract for the 2019-2020 and 2020-2021 school years and such teachers shall be exempt from a RIF. For teachers who retire at the end of the 2019-2020 school year the Board shall rehire the teacher for the 2020-2021 school year only.
 4. Any teacher who is rehired by the Board under the terms of this section shall be placed at Step 5 of the current salary schedule (formerly Schedule B) and shall be given credit for all of their educational experience and column movement/placement. The teacher shall stay at step 5 of this agreement for the first year in which the teacher is working as a retire/rehire teacher. Thereafter, the teacher shall move an additional year for each year of their retire/rehire contract (i.e. move to step 6 in year two).
 5. Any teacher with a PhD who elects to participate in this program shall receive full credit for their PhD. This credit shall be equal to the current educational column value of the teacher's PhD as calculated during the year in which the teacher elects to retire and shall follow the teacher in the District's placement of the teacher on step 5 of the new salary schedule. This calculation shall be shared with the teacher no later than June 1st of the year in which the teacher may plan to retire under the terms of this section.
 6. Any teacher who is rehired by the Board under the terms of this section shall be eligible to receive all healthcare and other fringe benefits offered by the District consistent with their full-time employment and consistent with the level of benefits they were entitled to prior to retiring.
 7. During the 2019-2020 and 2020-2021 school years only, any teacher who participates in this retire/rehire option shall retain all of their accrued seniority that was in effect at the time they initially retired (but not more than that), their previous OTES ratings and their continuing contract status for the purposes of calculating any reduction in force that could occur during the 2019-2020 and

2020-2021 school years. However, if the teacher continues on as a retire/rehire beyond the 2020-2021 school year, the teacher's seniority for the purposes of a reduction in force shall be zero (0) years of service and their contract status shall be the equivalent of a one (1) year limited contract for the purposes of a reduction in force.

8. Upon the mutual agreement of the Superintendent and the BEA President, the Board may offer any teacher who is serving as a retire/rehire at the conclusion of the 2020-2021 school year the opportunity to continue their employment as retire/rehire teacher on a limited contract basis only, and no retired/rehired teacher may obtain continuing contract status following retirement and re-employment by the District. ~~for the 2021-2022 school year only.~~ If the parties agree to do so, the teacher shall continue along in their step movement in a manner that is consistent with all of the aforementioned terms and conditions outlined above.
 9. ~~Effective 2019-2020, any teacher who may want to participate in this retire/rehire option shall, upon written request to the Superintendent, be granted one (1) professional day to meet with STRS in order to assist the teacher in determining whether or not they should participate in this retire/rehire program.~~
 10. Nothing in this agreement shall prevent a teacher who elects to participate in this retire/rehire option from ~~retiring~~ resigning at the end of their first year of retired service.
 11. Unless otherwise stated above, nothing in this section shall void, interfere with, or supersede any of contractual or statutory rights and privileges retained by the Teacher, the BEA or the Board in regard to this CBA, Board Policy or Ohio Revised Code.
- B. This Section shall automatically sunset at the end of the 2020-2021 school year and shall not be subject to any "rollover" should the BEA and the Board elect to enter into such an agreement.

